

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN CANADA

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Canada. The country's most famous environmental confrontation did not turn on a permit — it turned on a road, a rainforest, and a movement that would not step aside. In the summer of 1993, after the British Columbia government opened most of **Clayoquot Sound** — a vast tract of ancient temperate rainforest on Vancouver Island, in Nuu-chah-nulth territory — to clearcut logging by the timber giant MacMillan Bloedel, some **twelve thousand people** came to the Kennedy River Bridge to stand in the road. Over that summer **856 people were arrested**, in what remained the largest act of civil disobedience in Canadian history until the Fairy Creek blockades of 2021. But the blockade was only half the strategy. Organizers, working in support of Nuu-chah-nulth efforts, also went after the company where it was most exposed — its customers — and within two years MacMillan Bloedel had lost hundreds of millions of dollars in contracts, forcing the company and the government to the table. The clearcutting of the intact valleys was stopped; the Sound became a UNESCO Biosphere Reserve; and Indigenous stewardship took root. A movement with no money changed the fate of a rainforest, by combining people in the road with pressure on the market.

Clayoquot teaches two things about winning in Canada. The first is the pattern: not a single silver bullet, but the combination of every lever — the law, the impact assessment, the market, the media, and the mobilization — sustained until the cost of the project outgrew the will to build it. The second is distinctly Canadian and has only grown stronger since 1993: **the rights of Indigenous peoples**. building on Indigenous-led wins that came just before it — the 1984 court injunction that Nuu-chah-nulth nations won to stop logging on Meares Island pending their land claim, and the 1985 Haida stand at Athlii Gwaii (Lyell Island) that led to the protection of Gwaii Haanas —Clayoquot was fought alongside the Nuu-chah-nulth, and in the decades since, the courts have made the **Crown's duty to consult and accommodate** Indigenous peoples a constitutional obligation with real teeth — an obligation that has **quashed the approval of major pipelines**. Where a project affects Indigenous rights, the community's most powerful lever is often the one the Constitution itself provides.

Most communities, though, do not know HOW to make opposition effective. They send one letter to the impact-assessment agency and go home. They assume the project "will be approved anyway," and so they never make a substantive submission, never seek judicial review, never test whether the Crown consulted properly, never build the market pressure and the sustained campaign that change a decision. They generate a burst of outrage without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the Canadian system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organize a campaign that lasts)
STEP 4: LEGAL CHALLENGES	(impact assessment, judicial review, the duty to consult)
STEP 5: MEDIA STRATEGY	(make the fight visible and impossible to ignore)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the campaign sustains the pressure that decision-makers and courts respond to; a legal challenge is a headline and a headline strengthens a challenge. The community that runs all five together, each reinforcing the others, is the one that wins. Clayoquot did exactly this — it documented the forest's value, organized a mass movement, worked in support of Indigenous rights, pressured the market, and made its fight a global story, all at once.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Canada's give communities a distinctive set:

- **The duty to consult and accommodate.** Where a project may adversely affect the rights of First Nations, Métis, or Inuit, the **Crown — federal or provincial — has a constitutional duty to consult and, where appropriate, accommodate**, flowing from section 35 of the Constitution and the Honour of the Crown. Consultation that is inadequate has led courts to **quash project approvals outright**. This is Canada's most powerful lever, and it belongs to Indigenous nations. A non-Indigenous community that grasps this early, and builds its campaign around supporting rather than supplanting that leadership, is far better placed than one that treats Indigenous rights as an afterthought.
- **Two levels of impact assessment.** Major projects face **federal and/or provincial environmental (impact) assessment**, with public comment, expert evidence, and decisions that can be challenged in court.
- **Judicial review.** The **Federal Court and provincial superior courts** review whether a decision was made lawfully — and have set aside major approvals.
- **The market-pressure model.** Clayoquot pioneered hitting a company through its **customers, investors, and reputation**, a strategy Canadian campaigns have used to devastating effect ever since.
- **A civil-disobedience tradition.** From Clayoquot to Fairy Creek, Canada has a deep tradition of peaceful mass mobilization — powerful, and, this guide will be honest, legally perilous.
- **UNDRIP and free, prior, and informed consent.** Federal and British Columbia laws now commit governments to implement the UN Declaration on the Rights of Indigenous Peoples, raising the standard toward **free, prior, and informed consent**.

What This Guide Will Not Pretend

It would be dishonest to promise these levers always prevail. The duty to consult is **not a veto** — the Crown must consult in good faith, but need not reach agreement, and projects proceed after consultation the courts deem "adequate," as the Trans Mountain pipeline did. Federal and provincial **jurisdictions tangle**, and the courts have trimmed federal impact-assessment powers as overreach into provincial authority. **Provinces frequently champion resource projects** — forests, oil and gas, mines — and the same Crown that must consult is often the project's ally. Civil disobedience carries **injunctions, arrests, and contempt charges**, as Clayoquot, Fairy Creek, and the Wet'suwet'en pipeline conflict all showed. And governments increasingly move to **fast-track** resource, energy, and critical-minerals projects. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright, permanent stop is not realistic, how to secure the delay, the conditions, the exposure, and the worn-down proponent that, in a hard fight, are often what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

A Canadian development project usually runs a gauntlet of approvals across levels of government, and each is a place to intervene.

Provincial and territorial. For most projects — mines, forestry, dams, most industrial and land-use developments — the **province or territory** is the primary decision-maker, running the environmental assessment, issuing the permits, tenures, and authorizations, and, crucially, carrying its own **duty to consult** Indigenous nations. Provincial law is where most projects live or die.

Federal. The **federal government** runs its own **impact assessment** for projects within federal jurisdiction or with significant effects on federal matters — fisheries, migratory birds, navigable waters, interprovincial pipelines and railways, federal lands, and effects on Indigenous peoples — and carries its own duty to consult. Federal approval is a separate decision, separately challengeable.

Indigenous nations. Cutting across both: **First Nations, Métis, and Inuit** hold constitutionally protected rights, and many hold treaties, title, or self-government agreements. Their governments are decision-makers in their own right, the holders of the section 35 rights the Crown must consult on, and, increasingly, partners whose **consent** is sought. Where a project affects Indigenous territory, this is the decisive relationship.

Local government. Municipalities control local land use, zoning, and permits for many smaller projects, and are close and responsive — though their own duty to consult is unsettled in law.

The Journey of a Project

A typical major project moves from a proposal, to a **federal and/or provincial impact assessment** with public comment and Indigenous consultation, to the **assessment decision and the permits and authorizations** with their conditions, through any treaty, title, or consent processes, to construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: a substantive submission during the assessment, evidence entered into the record, support for a First Nation's consultation position. The later doors — judicial review of an approval, a duty-to-consult challenge, a market campaign — are more demanding but real, and communities walk through them and win. Find out exactly where your project stands on this path today; that tells you which door is open now.

Follow the Money and the Crown

Behind the permits stand a proponent, its financiers, its insurers, its customers, and the governments that approved it. A large project is often driven by a publicly traded company — MacMillan Bloedel was one — answerable to shareholders, lenders, insurers, and buyers a campaign can reach, and Clayoquot proved how vulnerable that chain can be. Trace who owns and funds the proponent, who buys its output, and which governments granted which approvals — and note where a government is **both the regulator and a backer or shareholder**, as British Columbia was with MacMillan Bloedel. That dual role is a vulnerability worth naming publicly: a government that both regulates a project and profits from it has a conflict the courts, the auditors, and the press all take seriously, and pointing it out reframes the fight from 'activists versus jobs' to 'a government marking its own homework.' Follow the ownership up to the parent, the lenders, and the insurers, because a project's weakest point is often several steps removed from the site. Two questions unlock most Canadian fights: **Did the Crown consult Indigenous peoples adequately, and was the assessment lawful?** and **Who benefits from pretending it did?**

The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **courts** — the Federal Court and Federal Court of Appeal, the provincial superior courts, and ultimately the **Supreme Court of Canada**, which built the duty to consult — review the legality of decisions and can quash them. The federal and provincial **impact-assessment agencies** run the public processes and produce the records a challenge is built on. **Auditors general, information and privacy commissioners, and ombudspersons** scrutinize public decisions, money, and access to records. And access-to-information laws open the file. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once. You do not have to choose one door: the same well-documented file can go to the assessment agency, the courts, the auditor general, the information commissioner, the buyers and insurers, and the press at once, and each front that opens makes the others harder to close. A Canadian campaign's power comes not from any single lever but from applying several at the same time, so that the proponent and the Crown must defend on every side.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Canadian and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the project affects **Indigenous rights** (which opens the duty-to-consult lever), whether the **Crown's consultation was inadequate**, whether the **assessment has real defects**, whether the **market and financiers** can be reached, and whether the public can be mobilized. Where Indigenous rights are engaged and consultation was poor, Canada's levers are strong; where the Crown consulted adequately and a province champions the project, discount the figures and think in terms of delay, conditions, exposure, and market pressure.

Individual Step Success Rates

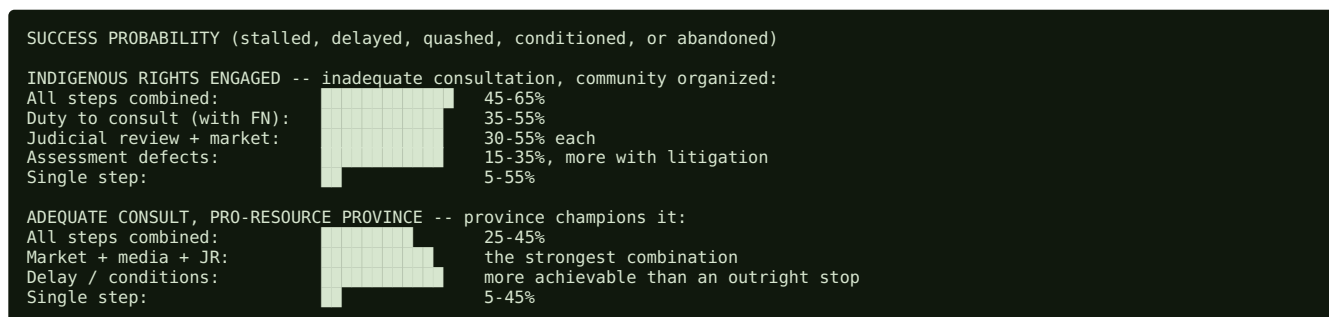
Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Impact-assessment submission	15-35%	during assessment	low	On record; conditions; a redo
Judicial review of an approval	30-50%	12-36 months	moderate	Decision quashed; remade properly
Duty-to-consult challenge (with/for a First	35-55%	12-36	low-	Approval quashed; consultation redone

Nation)		months	moderate	
Treaty / title / rights litigation	25-50%	years	moderate-high	Rights affirmed; project constrained
Provincial permit / tenure challenge	25-45%	6-24 months	moderate	Permit set aside; conditions
Market / customer / investor pressure	30-55%	6-48 months	low	Buyers, funders, insurers walk away
Municipal / local action	20-40%	3-18 months	low	Local block; delay; conditions
Access-to-information route	high for disclosure	weeks-months	low	Documents released; defects exposed
Media & public campaign	25-50%	ongoing	low	Political cost raised; decision shifts
Civil disobedience	variable	days-months	high (legal)	Delay; attention; leverage — and legal risk
All steps combined (Indigenous rights engaged)	45-65%	12-48 months	low-moderate	Stalled, quashed, conditioned, or abandoned
All steps combined (adequate consult, pro-resource province)	25-45%	12-48 months	moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: every step together beats any single one, and Canada's real strengths are distinctive — the **duty to consult and accommodate** that has quashed pipelines, **two levels of impact assessment**, **judicial review** that sets aside major approvals, the **market-pressure model** Clayoquot invented, a **civil-disobedience tradition**, and the **rising standard of Indigenous consent**. Its constraints are a **consultation duty that is not a veto**, **jurisdictional tangles**, **provinces that champion resource projects**, the **legal peril of blockades**, and a **drive to fast-track** development.

A note on cost: documenting, making submissions, seeking access-to-information records, and supporting a First Nation's consultation position are inexpensive, and legal-aid clinics, environmental-law charities, and First Nations' own counsel carry public-interest cases. Judicial review and rights litigation cost more, though costs can sometimes be recovered and public-interest funding exists. The expenditure that most changes outcomes is committed legal support — especially on the duty to consult — and the reach of the market and media campaign, exactly what Clayoquot marshalled.

Effectiveness Visualization



How to read this honestly. The levers that most change outcomes in Canada are **the duty to consult and the courts** where Indigenous rights are engaged, and **the market, the media, and judicial review** everywhere. Clayoquot shows the ceiling: a movement combined people in the road, work alongside Indigenous nations, and market pressure until the clearcutting stopped. The floor is set by a consultation duty that is not a veto and by provinces determined to push resource projects. Most Canadian fights sit between them, and the honest lesson is that the duty to consult, the courts, and the market are real and distinctive levers — but against a project where the Crown consulted adequately and a province is committed, the realistic win is often delay, conditions, exposure, and a proponent worn down, as much as an outright, permanent stop. Use the table to plan, not to predict: it tells you which combinations have historically done the most work and where to put scarce time first. The single most important reading is that no row on its own is as strong as the rows run together — the community that documents, supports the Nation, litigates, reaches the market, and publicizes at once consistently outperforms the one that pins its hopes on any single move.

Step Importance Ranking (When All Combined)

- The duty to consult and Indigenous rights** — Canada's decisive lever; a constitutional obligation, led by First Nations, that has quashed major approvals.
- The courts and impact assessment** — judicial review and the federal and provincial assessment records that expose a project's defects and can set aside its approval.

3. **The market and the money** — the customers, investors, and insurers Clayoquot taught campaigns to reach.
4. **The durable, mobilized campaign** — the sustained public pressure that makes a project a political liability.
5. **Media and, where chosen, civil disobedience** — the visibility and, at the limit, the direct action that raise the cost of proceeding.

What Canadian Campaigns Actually Show

A few patterns recur. **The duty to consult can stop a project** — the Northern Gateway pipeline's approval was quashed for it. **The market can be reached** — Clayoquot cost its company hundreds of millions and forced it to negotiate.

Judicial review bites — courts have set aside major approvals. **Mass mobilization works** — Clayoquot and Fairy Creek changed the politics of old-growth logging. **Indigenous leadership is decisive** — the strongest fights are led by or built alongside First Nations. **But consultation is not a veto**, provinces push projects, blockades carry legal peril, and wins are often partial and slow — the war in the woods, as its veterans say, never truly ended. The through-line: **check whether Indigenous rights are engaged; support the First Nation's leadership; document every defect; use the assessment, the courts, and the market; mobilize the public — and expect a long fight measured in delay, conditions, and exposure as much as an outright stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the mine" goes nowhere; opposition to "the provincial permit issued after an assessment that understated the impact on a salmon-bearing river, where the Crown never adequately consulted the First Nation whose fishing rights it affects" is a case. Answer five questions.

The Five Core Questions

1. What exactly is proposed, and under what approvals? Name the project, the proponent, and the specific approvals it needs or holds — the provincial and/or federal assessment decision, the permits, tenures, and authorizations. Each instrument has conditions and a paper trail, and each is a place a defect hides.

2. What stage is it at? Proposal? Impact assessment underway? Public-comment window open? Approval issued? Under construction? The stage dictates the door. If the assessment is open, your submission and evidence are cheap and powerful. If the approval is issued, judicial review and a duty-to-consult challenge may be the route — and the deadline to seek review is short.

3. Does it affect Indigenous rights — and was the Crown's consultation adequate? This is the pivotal Canadian question. Does the project affect the rights, territory, treaties, or title of First Nations, Métis, or Inuit? If so, the Crown had a duty to consult and accommodate — and whether it did so adequately is often the single strongest legal issue. This lever belongs to the Indigenous nation; your role is to support its leadership, not to speak for it.

4. Which government decides, and is it federal, provincial, or both? Identify whether the project falls under provincial assessment, federal assessment, or both, and which permits each level issues. Two assessments mean two records and two decisions to test. Be aware that the federal regime is unsettled: the current federal Impact Assessment Act (2019) replaced an earlier law, and in 2023 the Supreme Court found that parts of its scheme reached too far into provincial jurisdiction, prompting amendments. The federal assessment lever remains real where genuine federal effects are engaged — fish, migratory birds, navigable waters, interprovincial works, effects on Indigenous peoples — but confirm the current rules for your project's category, because this is the part of Canadian environmental law most in flux.

5. Who decides, who benefits, and who is watching? Which ministries and agencies approved it; who owns, funds, and buys from the proponent; which First Nations, municipalities, and communities are engaged; and which legal charities, First Nations' counsel, press, and market-facing allies can be reached. This maps your levers and your audiences at once.

A Worked Example

Suppose a company proposes a mine on a salmon-bearing watershed in a First Nation's traditional territory, in a province that supports it, with a provincial assessment underway.

Working the five questions: the project needs a **provincial assessment decision** (underway — make a submission and get the documents) and permits, and, because of the fish-bearing waters, likely a **federal assessment** too (check). It is **in assessment**, so submissions and evidence are the live, cheap route now, with judicial review and a duty-to-consult challenge held in reserve. The **First Nation's rights and territory** are engaged — so the **adequacy of the Crown's**

consultation becomes the central legal question, led by the Nation. Both **provincial and federal** processes may apply. The province's support means the **duty to consult, the courts, the market, and the public** carry more weight than lobbying the province.

Within a weekend you have moved from "we oppose the mine" to a target list: make a detailed, evidenced assessment submission; get the assessment and consultation records; support the First Nation's consultation position and legal options; establish whether a federal assessment applies; line up an environmental-law charity and counsel for judicial review; identify the proponent's buyers, funders, and insurers; and prepare the salmon-and-territory story for the press. That is a campaign, not a complaint. Notice what the exercise did: it converted a diffuse fear into a short list of concrete, assignable tasks — connect with the Nation, make the submission, pull the consultation record, brief counsel — each tied to a specific lever and each of which can begin this week, several of them before the assessment even closes. That is the difference the five questions make.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A judge, an assessment panel, a journalist, and a company's financiers all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on. Obtain the **impact-assessment application and report**, on the public registry or from the agency; the **federal and provincial assessment records** and decision statements with their conditions; the **permits, tenures, and authorizations**; and the **consultation record** — how, and how well, the Crown consulted affected Indigenous nations. Much of this is public on the assessment registries, and the rest is obtainable through **access-to-information** requests (the federal Access to Information Act and each province's freedom-of-information law). The gap between what the assessment claims and what the record and the rights require is where cases are won. Clayoquot's opponents built exactly this kind of record — the science of the old-growth valleys and the reality of the clearcuts — and made it impossible to ignore. Pay special attention to the **consultation record**: the letters, meeting notes, and responses that show what the affected Nation raised and how the Crown answered. A record that shows concerns logged and never addressed, deadlines imposed unilaterally, or 'consultation' that began only after the decision was effectively made is the raw material of a successful duty-to-consult challenge — and it is exactly the kind of document access-to-information exists to pry loose.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual footprint** — the clearing, the roads, the tailings, the watercourse, the habitat — and geotag it. Log **incidents**: a spill, a fish kill, a sediment plume, clearing beyond approval. Capture **before-and-after** with your own photos and with freely available satellite imagery, which can show clearing, encroachment, and the true scale of operations. Record **species and habitat** — salmon runs, caribou, migratory birds, species at risk — mapped against the footprint. And record **testimony and knowledge**: where a First Nation chooses to share it, Indigenous knowledge of the land, the water, and the harvest is powerful evidence, held and led by the Nation itself; and residents, fishers, and independent scientists can add technical readings. Community and Indigenous-led monitoring carries real weight.

Layer 3: The Defects and the Rights

Finally, document the failures of process and the legal lines the project crosses. Was the **assessment deficient** — understating effects on fish, water, species, or cumulative impacts? Was the **Crown's consultation inadequate** — too shallow, too late, or a box-ticking exercise that failed to grapple with the Nation's concerns? Was **accommodation refused** where the impact was serious? Does the project breach a **treaty, title, or an established right**? Was the **federal assessment skipped** where federal effects were engaged? Federal jurisdiction is engaged more often than communities expect: the **Fisheries Act** protects fish and fish habitat, the **Species at Risk Act** protects listed species and their critical habitat, the **Migratory Birds Convention Act** protects migratory birds, and federal power over **navigable waters** and interprovincial works can all bring a project — or a piece of it — under federal law even when the province leads. A salmon river, a listed caribou herd, or a migratory-bird wetland can be the hook that opens a second, federal front. Each defect is a separate ground — for a submission, judicial review, a duty-to-consult challenge, or a rights claim — and together they make a case that is hard to wave away. This is the layer that most often decides Canadian fights, because here a project that looked approved is revealed to rest on inadequate consultation, a deficient assessment, or an

unaddressed right — and inadequate consultation, in particular, has quashed approvals the government thought were final. Read the assessment and the consultation record against the grain — for the species surveyed once and dropped, the cumulative effects declined, the closure plan that assumes perpetual water treatment, the 'engagement' that was really a notification. These documents are written to justify a decision already leaning toward yes; read with a skeptical, expert eye, they are where the strongest objection usually hides in plain sight, and where a paid consultant's optimism becomes your evidence.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide Canadian cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Approvals and Their Paper Trail

- **The impact-assessment application, report, and decision statement**, with the conditions. On the federal Impact Assessment Registry and the province's assessment registry, or from the agency. Read them for what they understate — the fish and water, the species at risk, the cumulative and downstream effects, the closure and reclamation plan.
- **The consultation record** — how the Crown consulted affected Indigenous nations, what concerns were raised, and how (or whether) they were addressed. This is often the most important file of all, because inadequate consultation is a leading ground for setting an approval aside.
- **The permits, tenures, and authorizations** (mining, forestry, water, fisheries) and their conditions.
- **Any treaty, agreement, or title context** — the treaty covering the territory, any land-claim or self-government agreement, any impact-benefit agreement.
- **The relevant statutes and policies** — the applicable federal and provincial assessment laws, species-at-risk and fisheries protections, and any UNDRIP-implementation commitments.

How to Get Them

Much of this is public on the assessment **registries** and during the **public-comment windows** — the cheapest, most powerful moments to enter your evidence, so watch for them and act while they are open. For everything else, use **access-to-information**: the federal Access to Information Act and the provincial FOI laws entitle you to government records, and a targeted request naming the documents obliges a response, with review rights if it is refused. A refusal is itself a documentable fact. Move early: the comment windows are fixed, and the deadline to seek judicial review of a decision is short — often thirty days — so evidence and objections entered while the doors are open carry far more weight, and preserve far more of your rights, than the same point raised after the approval is issued. A practical tip: make access-to-information requests specific and dated, keep proof of when you sent them and when they were answered, and treat any refusal or delay not as a dead end but as a new, documentable fact and a trigger for a complaint to the information commissioner. A government that will not release its own consultation record is telling you something worth knowing.

The Ground Evidence

- **Dated, geotagged photographs and video** of the footprint, the clearing, the watercourse, the habitat.
- **Satellite before-and-after** from freely available imagery, to show clearing or the true extent.
- **Species and habitat records** — salmon, caribou, species at risk, migratory birds — mapped against the footprint; a documented impact the assessment missed is decisive.
- **Independent technical readings** — a fisheries biologist's, hydrologist's, or ecologist's report, and an independent review of the assessment. Environmental-law charities and university partners can help source these.
- **Maps** overlaying the footprint on the watershed, the species habitat, the treaty or title area, and the protected zones — a single map showing a mine above a salmon river or across a trapline is worth pages of argument.
- **Knowledge and testimony** — where a First Nation chooses to bring it, Indigenous knowledge and use, led by the Nation; and residents' and fishers' accounts.

Organize It So It Persuades

Keep a **master timeline** of every assessment step, comment window, permit date, consultation event, incident, and deadline — the spine of any court case. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a journalist, and a judge all see the same clear picture fast — and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the other side challenges it. In a

fight that can run for years and pass through many hands, the community with the better-kept file is very often the one that prevails.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANIZE A CAMPAIGN THAT LASTS

Evidence and law do not stop projects on their own. Organized people do — sustained, visible, and credible over the months or years a fight takes. This is the step Clayoquot did best: a mass, disciplined, sustained movement that combined the road and the market and worked alongside Indigenous nations.

Phase 1: The Core, and the Relationship with the Nation

Start with a small, committed core — five to fifteen people who will carry the work. Where the project affects Indigenous territory, the single most important early step is to **understand and respect the affected First Nation's leadership and position**: the section 35 rights are theirs, the duty to consult is owed to them, and the strongest campaigns support Indigenous leadership rather than substituting for it. Reach out respectfully, follow the Nation's lead, and never presume to speak on its behalf. Assign roles: documentation, legal liaison, media, community liaison, market-and-corporate research, and coordination. Agree on the goal — refusal, a quashed approval, redesign, conditions, a buyer walking away — and on what you will and will not accept.

Phase 2: The Coalition

Then widen deliberately. Bring in **residents, fishers, farmers, scientists, students, faith and labour groups, and local businesses**. Reach the **allies with capacity** — the environmental-law charities that run public-interest and duty-to-consult litigation; the national and regional conservation organizations whose reach and experience can amplify a local fight; independent scientists; and the market-focused campaigners who pressure buyers, banks, and insurers. Clayoquot's power came from exactly this breadth — local activists, national and international organizations, and Indigenous nations, aimed simultaneously at the road, the courts, and the market — which is precisely the spread a winning campaign needs.

A worked coalition example. Facing a mine on a salmon watershed in a First Nation's territory, a handful of residents and fishers form a core; they build a respectful relationship with the Nation and follow its lead; they bring in an environmental-law charity and an independent fisheries biologist; the municipality passes a resolution of concern; a national organization amplifies the fight and briefs the buyers; and market campaigners press the proponent's financiers. No single group could have carried it; together they cover documentation, law, science, local and Indigenous legitimacy, national reach, and market pressure.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — a strong submission, a document pried loose, a buyer's statement, a court date set. Rotate the exhausting roles. And protect people: keep leadership collective and visible; get early legal advice, especially before any action that risks arrest or an injunction; document every threat or intimidation; and build outside links to the charities, the national organizations, and the press. Sustaining a campaign — as Clayoquot's long aftermath shows — is how these fights are won, and the fights that endure are the ones that pace themselves for years. Build in the human things that keep people together: welcome newcomers, share meals, mark the anniversaries and the small victories, and make the campaign a community people want to belong to. And respect the difference in stakes: for a non-Indigenous ally the fight may be a cause, but for the affected Nation it is home and identity, so follow the Nation's pace and priorities, and do not burn out the relationship by pushing harder than it wishes to go.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for hearings, comment windows, and rallies. Gather submissions — a mass of individual, substantive submissions carries real weight. Hold peaceful, well-documented actions — the marches, the rallies on the legislature lawn, and, where people choose it and understand the legal risks, the non-violent direct action that made Clayoquot and Fairy Creek national images. Be clear-eyed here: blockades draw injunctions and criminal charges, and the decision to risk arrest is a serious one that must be made with legal advice and, where Indigenous land is involved, with and under the Nation's leadership. The point is not spectacle; it is to demonstrate, to governments, courts, proponents, and the market, that the opposition is broad, rooted, and not going away. Choose actions that photograph

well and that anyone can join — a rally on the legislature steps, a flotilla on the threatened river, a community feast that doubles as an organizing meeting — and document them yourselves, so the breadth and spirit of the turnout survive as a record even if no outlet covers them. A visibly broad, peaceful, rooted movement, standing with the Nation, is the single most persuasive argument a minister or a judge weighs.

STEP 4: LEGAL CHALLENGES — ASSESSMENT, JUDICIAL REVIEW, AND THE DUTY TO CONSULT

Canadian law gives communities a real arsenal, and you do not need a final ruling to win with it: a submission, a challenge, or a market campaign delays a project, forces disclosure, and creates leverage and headlines. Engage an environmental-law charity or counsel early — but understand the tools yourself.

Impact Assessment: the Public Record

The first lever is the impact assessment. Federal and provincial assessments include **public-comment periods** in which anyone can file evidence and argument, and in which independent science can be entered into the record. These submissions do more than register opposition: they build the evidentiary record a later court challenge is decided on, they can win binding conditions, and a deficient assessment that ignores the concerns raised becomes vulnerable to judicial review. Treat the assessment not as a formality but as the first phase of the legal case, and put your strongest science and your clearest account of the defects on the record while the window is open. What you leave out of the record can be as costly as what you put in: courts reviewing an approval generally look to the record that was before the decision-maker, so an argument or a piece of evidence never entered during the assessment may be much harder to raise later. Treat every comment window as your one chance to build the file the judge will read, and enter your best science, your maps, and your clearest statement of each defect while you can.

Judicial Review — Testing the Decision's Legality

An approval can be challenged by **judicial review** in the Federal Court (for federal decisions) or the provincial superior court (for provincial ones), asking whether the decision was made lawfully — within jurisdiction, on the relevant evidence, following a fair process, and reasonably. Courts have used judicial review to **set aside major project approvals**, sending them back to be redone. The deadlines are short, so the moment an approval issues, get advice on whether to seek review and on what ground. An approval quashed is a project delayed by years and sometimes killed outright.

The Duty to Consult and Accommodate — Canada's Sharpest Lever

The most powerful ground in Canadian law, where it applies, is the **Crown's duty to consult and accommodate**. Flowing from section 35 of the Constitution and the Honour of the Crown, and established by the Supreme Court in *Haida Nation* (2004) and the cases that followed, the duty requires the Crown — federal or provincial — to **consult, and where appropriate accommodate**, First Nations, Métis, and Inuit whenever it contemplates conduct that may adversely affect their established or asserted rights. The depth of consultation rises with the strength of the claim and the seriousness of the impact. That is the spectrum the *Haida* trilogy set out: at one end, a weak claim and a minor impact may require only notice and information; at the other, a strong claim and a severe, permanent impact require deep consultation and, often, accommodation that meaningfully changes the project. The duty is triggered even by *asserted* rights not yet proven in court, which matters greatly for the many Nations whose title has never been formally adjudicated. And the obligation rests with the **Crown, not the proponent**: a government may hand a company the paperwork of consultation, but it cannot delegate away its own legal responsibility, so a project cannot cure inadequate Crown consultation by pointing to meetings the company held. It is **not a veto** — the Crown need not reach agreement — but it is a real and enforceable obligation, and where the Crown consults inadequately, **courts have quashed the approval**: the Northern Gateway pipeline's federal approval was set aside in 2016 precisely because consultation fell short. Two years later the Federal Court of Appeal quashed the Trans Mountain expansion's approval on similar grounds — the Crown's final-phase consultation had been a note-taking exercise rather than a genuine two-way dialogue, and the marine-shipping impacts had been left out of the assessment. The government redid the consultation, re-approved the project, and this time the courts upheld it — which is the honest lesson in a single pair of cases: inadequate consultation can stop a project cold, but it buys a redo, not necessarily a permanent defeat. This lever belongs to the Indigenous nation. Your role is to support the Nation's leadership, resource its position where it welcomes that, and never to appropriate or speak for it. In practice that means asking rather than assuming, offering capacity — research, logistics, funds, a legal contact — rather than direction, and accepting that the Nation may pursue the fight on terms, at a pace, or toward an outcome different from what a non-Indigenous ally would choose. That is not a limitation on the campaign; it is the condition of the campaign's legitimacy.

and, very often, of its success.

Treaty, Title, and Rising Consent

Beyond consultation lie deeper Indigenous-rights levers: **treaty rights**, **Aboriginal title**, and the rising standard of **free, prior, and informed consent** under the UN Declaration, which federal and British Columbia law now commit governments to implement. British Columbia's Declaration on the Rights of Indigenous Peoples Act (2019) and the federal United Nations Declaration Act (2021) require governments to align their laws with the Declaration, whose standard for measures affecting Indigenous peoples is not mere consultation but free, prior, and informed consent. How far this reshapes project approvals is still being worked out, but it is shifting the baseline — from 'were they consulted?' toward 'did they agree?' — and a Nation that withholds consent now stands on firmer ground than it did a decade ago. These are complex, Nation-led questions of long-running significance, but they can constrain or defeat a project, and a community should understand that where a Nation asserts title or withholds consent, the legal and political ground shifts substantially.

Where to File and With Whom

Judicial review and duty-to-consult challenges run in the **Federal Court** or the **provincial superior courts**, up to the **Supreme Court of Canada**; treaty and title claims run in the superior courts. Get help early: environmental-law charities, First Nations' own counsel, legal-aid clinics, and university law programs know exactly these procedures and can advise on standing, the strongest ground, the short deadlines, and how a non-Indigenous community can properly support an Indigenous-led case. A lawyer engaged while the assessment is open and the review deadline is alive is worth far more than help sought after the machinery arrives. On standing: a community group may bring judicial review where it is directly affected, and Canadian courts also recognize **public-interest standing** for organizations raising a serious, justiciable issue with no other reasonable way to bring it before the court — which is one reason forming an incorporated society or partnering with an environmental-law charity early is valuable, since it gives your campaign a body that can litigate in its own name.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a judge, an assessment panel, a minister, a journalist, a buyer, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a mine was approved on an assessment that understated its impact on a salmon river, where the Crown's consultation with the affected First Nation was shallow and late. That one fact becomes:

- **A duty-to-consult argument:** the Crown failed to consult adequately on a serious impact to established rights — a leading ground to quash the approval (led by the Nation).
- **A legal argument:** the approval rests on a deficient assessment and an unlawful process — grounds for judicial review.
- **A fisheries-and-water argument:** a salmon run, and the rights and livelihoods that depend on it, are put at risk — the issue that unites a community and reaches the public.
- **A media argument:** a mine approved without properly consulting the First Nation or counting the salmon it will harm — a clear, human story with a stake.
- **A market argument:** a project resting on a quashable approval and unresolved Indigenous opposition is a legal, reputational, and financial risk to its buyers, funders, and insurers.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Canada the arguments that most often decide things are the **duty to consult** (led by the Nation) and the **market pressure** (Clayoquot's enduring lesson). Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the record and a claim made to the court can be spoken plainly at a public meeting; consistency across audiences is itself persuasive. Learning to move fluently between these registers — the inadequate consultation for the court, the salmon for the community and the public, the reputational risk for the buyer, the human story for the reporter — is one of the most valuable skills a campaign develops, because it lets the same underlying evidence work every lever at once without ever straying from the facts.

Match the Argument to the Audience

The courts want the illegality framed precisely against the specific rule — the inadequate consultation, the assessment's deficiencies, the unlawful process — with the documents and the timeline that prove it, and, on consultation, led by the Nation.

Ministers and agencies respond to legal risk and political cost — the quashable approval, the mobilized public, the Indigenous opposition, the exposure of having approved a defective project.

Journalists need a specific, verified, human story with a hook: a named place, a river or a species, a First Nation's stand, a documented defect, an imminent decision.

Buyers, investors, and insurers respond to legal, reputational, and financial exposure — a contested project on a shaky, quashable approval, tied to a named company.

The community itself needs to see that the fight is winnable and shared — the small wins, the growing campaign, the pressure mounting — so it lasts.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of approval, reaches ministers, buyers, and financiers your letters cannot, protects activists by making them visible, and can turn a local fight into a national or global cause. Clayoquot proved it: the images of ordinary people — mothers, elders, children — arrested on a logging road were broadcast around the world, and the customer campaign that followed reached buyers on other continents.

Build the Story

Reporters need specifics: a named place and people, a dated and documented defect or harm, a clear stake, and a live decision or deadline. "A project threatens the environment" is not a story; "a mine has been approved to operate above a salmon river the First Nation was never properly consulted about, on an assessment that understated the risk, with construction due next month" is. Lead with your strongest verified fact, attach the map and the imagery, and offer a human voice — a fisher, an elder where the Nation chooses to speak, a scientist — and a striking image. Canadian audiences respond powerfully to the specific and the local: a named river, a named herd, a named place people can picture, and a decision with a date. Resist the temptation to make every fight about the climate crisis in the abstract; the strongest stories are concrete, and the abstractions land harder when they arrive attached to a salmon run or a stand of thousand-year-old cedar that a named company is about to destroy.

Reach the Right Outlets

Work outward in rings. **Local and regional press** first, where the project is felt and officials read it. Then **national outlets** — the major newspapers, the national broadcaster, and Canada's strong independent and Indigenous-led press — which carry political weight. Then, for a project touching a listed company, a global buyer, or a globally resonant value (old-growth, salmon, the boreal, Indigenous rights), **international and financial media**, which reach the money. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the ring that reaches the **market**: tracing MacMillan Bloedel's pulp and paper to the companies that bought it and persuading them, one after another, to cancel their contracts until the losses ran to hundreds of millions of dollars — a strategy that has since become a global template, from tar-sands crude to farmed salmon to old-growth timber. Clayoquot's genius was to follow the wood to its buyers, and coverage in financial and international outlets, and briefings to investors and insurers, can reach a project where domestic politics cannot. It is worth learning the specific investigative, environmental, and business journalists who cover resource projects and Indigenous rights, and the responsible-investment analysts who advise the funds and insurers; a reporter or analyst who already understands the terrain needs less briefing and carries more weight, and a single well-sourced investigation into a quashable approval or a broken consultation can move a board or an insurer more than a month of press releases. Offer your strongest documented finding as an exclusive and you gain an ally, not just a mention.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions. Plan a sequence — the submission, the assessment decision, the new document, the court filing, the buyer's decision, the rally — so there is always a next hook, and build your own record (a simple site, a social feed, a growing album of dated photographs and video) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one

exaggeration handed to the other side can cost you credibility you cannot rebuild. Follow the affected Nation's lead on how its story and knowledge are told, and be careful and factual when naming individuals or companies. Verified, specific, human, and relentless — that is the coverage that shifts outcomes.

EMAILS & LETTERS

Written communications are how you make submissions, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Submission to the Impact Assessment (federal or provincial)

To: the impact-assessment agency (via the registry or comment portal) **Subject:** Submission — [project], [assessment reference]

I make this submission on [project] at [location]. My grounds, with evidence: (1) the assessment [understates / omits] [effect — e.g. the impact on the salmon run in [river]]; (2) [effects on species at risk / water / cumulative impacts are inadequately addressed]; (3) [the consultation with affected First Nations appears inadequate]; (4) [federal effects engage a federal assessment not undertaken]. I request that the [approval be refused / the effects be properly assessed / binding conditions be imposed], and that this submission and its evidence be entered on the record. [Attachments: expert report, maps, records.]

8B. Access-to-Information Request

To: [the federal institution (ATIP) or the provincial body (FOI)] **Subject:** Access request — [project]

Under the [Access to Information Act / provincial FOI Act], I request records concerning [project], including: the impact-assessment application, reports, and decision statement; the Crown's consultation records with affected Indigenous nations; the permits, tenures, and authorizations and their conditions; and [correspondence between the proponent and the agency on [issue]]. I am glad to discuss scope to assist a timely response, and note the public interest in disclosure.

8C. Letter Instructing an Environmental-Law Charity / Counsel

To: an environmental-law charity or counsel **Subject:** [Project] — judicial review and duty-to-consult issues

We believe the [approval] for [project], issued on [date], is legally vulnerable because [the assessment is deficient / the process was unfair / the Crown's consultation with [First Nation] was inadequate]. We attach the decision, the assessment, the consultation record, our expert evidence, and our timeline. We seek your advice on judicial review, the short deadline, the strongest ground, and — where the affected Nation wishes it — how our community can properly support an Indigenous-led duty-to-consult challenge.

8D. Letter Supporting a First Nation's Position (at the Nation's invitation)

To: [the Crown / the agency / the proponent], copied to [the First Nation, with its agreement] **Subject:** [Project] — support for [First Nation]'s stated concerns

As a community group in [place], and at the invitation of and in support of [First Nation], we write to underline the concerns the Nation has raised about [project]: [the inadequacy of consultation / the impacts on its rights, territory, and the salmon]. We do not speak for the Nation; we stand with it, and we ask that its concerns be properly addressed and its rights respected before any decision proceeds. [Attach supporting evidence the Nation is content to have shared.]

8E. Referral to an Auditor General / Information Commissioner / Ombudsperson

To: [the Auditor General / the Information Commissioner / the Ombudsperson] **Subject:** Referral — [irregularity / access refusal / maladministration], [project]

We bring to your attention [the failures] connected with [project]: [sourced facts — an approval on a deficient assessment, inadequate consultation, records improperly withheld, officials or a government acting as both regulator and backer]. We

request that you [audit the decision and any public funding / order disclosure / investigate the administrative process], and we attach the documentation.

8F. Letter to a Minister / MP / MLA / Council

To: [the relevant minister / an MP / an MLA / the council] **Subject:** [Project] — concerns and request

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — a threat to a salmon river and a First Nation's rights, a deficient assessment, inadequate consultation]. Within your responsibility, we ask you to [refuse or condition the approval / require a federal assessment / ensure the Crown's consultation is adequate / pass a resolution of concern]. [If true:] [#] residents and [#] organizations share this concern, and the approval carries real legal risk. We welcome a meeting and can share our full evidence.

8G. Letter to a Buyer / Investor / Insurer

To: [the proponent's customer / financier / insurer] **Subject:** [Project] — legal and reputational risk

We write regarding your [purchasing / financing / insurance] relationship with [company] in connection with [project]. The project [one-line stake — e.g. "rests on a legally vulnerable approval and unresolved opposition from the First Nation whose rights it affects"], and our documented concerns include [the inadequate consultation, the deficient assessment, the pending legal action]. We ask you to weigh the legal, reputational, and financial risk, and whether your own [environmental, social, and Indigenous-rights commitments] are consistent with supporting it. We are glad to share our evidence.

8H. Email to a Reporter (Regional, National, or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the place / the river]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "a mine was approved above a salmon river the First Nation was never properly consulted about, on an assessment that understated the risk, with construction due [date]"]. It is specific, verified, and it echoes Clayoquot. I can share the full file and — where the Nation wishes to speak — connect you with affected people and a scientist. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — above all the comment windows and the short judicial-review deadline. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation and expert reports; and route them, where you can, through or with the affected Nation (following its lead), your environmental-law charity or counsel, and your national and market-facing allies. The reply — or the silence — becomes part of your record, and in Canada that record feeds the levers that matter most: the duty to consult, the assessment, the courts, the market, and the public.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With a few hours a week you can still do real damage to a bad project. In rough order of impact for the effort:

- 1. Find out if Indigenous rights are engaged — first.** Establish whether the project affects a First Nation's rights, territory, treaty, or title, and reach out respectfully to understand the Nation's position. Where it is engaged, the Crown's duty to consult is often the single strongest issue — and the fight is best led by or built alongside the Nation.
- 2. Make a submission during the assessment.** One substantive, evidenced submission (8A) puts your case on the public record, can win binding conditions, and builds the record a later challenge is decided on — but the window is short, so act now.
- 3. Get the records — registry and access-to-information.** The assessment is public on the registry; the consultation record and the rest come via access-to-information (8B). The gap between the assessment and the rights is usually the case.

4. Line up judicial review. The moment an approval issues, an environmental-law charity or counsel can advise on judicial review — but the deadline is often just thirty days, so do not wait.

5. Follow the wood, the ore, or the oil to its buyers. Clayoquot's lesson: identify the proponent's customers, funders, and insurers, and write (8G). Canadian campaigns have moved projects by reaching the market when they could not move the government.

6. Tell the story. A salmon river, an old-growth forest, or a First Nation's stand is a powerful story; one accurate tip (8H) can reach ministers and buyers a submission never will.

7. Reach a national organization. A national conservation or legal organization (8C) can lend expertise, standing, and reach a local group lacks.

Do only the first three and you will have identified your strongest lever, put your evidence on the record while it counts, and pried loose the documents that reveal the defect — the exact foundation a bigger fight is built on. Then come back and read the rest. Even the shortest version has a spine: check the Indigenous-rights lever, make the submission, get the records. Everything else in this guide amplifies those three moves. A community that does only them has already done more than most projects' opponents ever manage — and has often done enough to build the record, expose the gap in consultation, and put the Crown on notice that this approval will be tested in court, watched, and fought.

WHEN THE SYSTEM IS TILTED

Canada's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt runs through the **duty to consult's limits**: it is a duty to consult in good faith, **not a veto**, and a project can proceed once the Crown consults "adequately," even over a Nation's objection — the Trans Mountain pipeline was re-approved and built after a second round of consultation. **Federal and provincial jurisdictions tangle**, and the courts have trimmed federal impact-assessment powers as reaching too far into provincial authority, leaving gaps and uncertainty. **Provinces frequently champion resource projects**, and the same Crown that owes the duty to consult is often the project's promoter. **Civil disobedience meets injunctions, arrests, and contempt**, as Fairy Creek and the Wet'suwet'en conflict showed. At Fairy Creek in 2021, more than a thousand people were arrested defending old-growth on Vancouver Island under a court injunction; on Wet'suwet'en territory, the Coastal GasLink pipeline proceeded despite the opposition of the Nation's hereditary chiefs, with repeated police enforcement of injunctions. These are sobering reminders that a blockade is a tactic with real legal consequences, that an injunction can turn peaceful protesters into defendants overnight, and that the decision to risk arrest must be made soberly, with legal advice, and — on Indigenous land — under the Nation's own leadership. And governments increasingly pass laws to **fast-track** resource, energy, and critical-minerals projects. Where this tilt bites, the formal process gives less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

The duty to consult still has teeth. Even short of a veto, inadequate consultation is a live and powerful ground that has **quashed major approvals**, and it belongs to the Nation whatever a province wants.

The courts test every decision. Judicial review reaches the legality of an approval regardless of the government's enthusiasm, and has set aside projects the government thought were done.

The market cannot be legislated away. Buyers, investors, and insurers answer to their own reputations and commitments, and Clayoquot proved a company can be reached through its customers when it cannot be reached through its regulator.

The assessment record endures. What you enter into the public record survives to power a later challenge, whatever the immediate decision.

Mobilization and Indigenous leadership are irreducible. A movement rooted in a community and led by or standing with a Nation is a durability and a legitimacy no fast-track law can dissolve.

The Honest Frame

So the honest frame for Canada is real but demanding. The duty to consult, the courts, the assessment, the market, Indigenous leadership, and a deep mobilization tradition give a community genuine — in places distinctive — power, as Clayoquot proved and as the quashed pipeline approvals confirm. But consultation is not a veto, jurisdictions tangle, provinces push projects, blockades carry legal peril, and governments are fast-tracking development. So diagnose the tilt honestly: lean on the duty to consult (led by the Nation), the courts, and the market, not on a friendly province; document every defect and every gap in consultation; protect your people and get legal advice before any action that risks arrest; treat a win as something to be defended, not banked; and think in terms of delay, conditions, exposure, and a proponent worn down as much as an outright, permanent stop. Against an adequately consulted project a province champions, that is often what winning looks like — and it is real.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes a project advances not despite the evidence but because someone is being paid, pressured, or improperly favoured. Undue influence changes your strategy: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of capture. An **approval issued against the evidence**, over strong documented objections and a Nation's opposition, without addressing them, suggests more than error. **Undisclosed interests, donations, or revolving-door ties** between the proponent and the deciders; an **assessment curtailed or a consultation staged** as a box-ticking exercise; a **government acting as both regulator and shareholder or backer**; **permits issued at unusual speed**; and **conditions never enforced** all point the same way. And **pressure, surveillance, or legal threats aimed at the campaign's or the Nation's leaders** are themselves a signature of something wrong. One anomaly may be error; a pattern is capture. Corruption tends to leave its fingerprints in the sequence of events — lay your timeline beside the official one and watch for approvals that cluster around a donation, a meeting, or a change of official.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where undue influence reaches. A **provincial ministry, a staged consultation, or a single decision-maker** can be pressured or captured. But the Canadian system has bodies harder to reach that a captured provincial arrangement cannot easily control: the **Federal Court and the Supreme Court of Canada**; the **duty to consult**, which the courts enforce regardless of the province's wishes; the **auditors general and information commissioners**; the federal assessment where federal effects are engaged; the **national and Indigenous press**; and international attention. Undue influence thrives on darkness and on staying provincial; your task is to lift the matter out of the captured node and into the light and the higher, cleaner fora.

What to Do

Do not confront and tip off the captured decision-maker. Instead, **document the anomaly precisely** — the dates, the interests, the ignored objections, the staged consultation, the missing enforcement — and refer it, with evidence, to the bodies above (8E): the auditor general, the information commissioner, the courts, and the press. Pair the referral with the judicial review, the duty-to-consult challenge, and the market pressure, so the wrongdoing and the harm are exposed together. Exposure has its own momentum: an audit finding or a court's attention creates a record other bodies must reckon with, and a consultation shown to be staged collapses the process the approval stood on. And protect yourself above all — get legal advice, coordinate with your counsel and the Nation, keep the work collective and documented, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight.

Early (Weeks 0-8): Identify, Connect, and Document

Pin down the project, the approvals, and the stage (Step 1), and, where Indigenous rights are engaged, reach out respectfully to understand the affected Nation's position and follow its lead (Step 3). Begin the file — get the assessment and consultation records from the registry and by access-to-information (Step 2 and What to Gather). And move fast on what will not wait: **make submissions during the assessment**, and **establish whether a federal assessment applies and whether consultation has been adequate**. Line up an environmental-law charity or counsel now, before the short review deadline. This early phase is cheap, and it sets up everything else.

Middle (Months 2-24): Escalate on Every Front

Grow the campaign and coalition (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate legally as the facts warrant — judicial review of an approval, and, led by the Nation, a duty-to-consult challenge (Step 4). Refer any capture to the auditors and commissioners. Follow the product to its buyers and press the financiers (8G). Build the media drumbeat from local to national to market (Step 5). Each front feeds the others: a court filing is a headline, a headline is pressure, pressure moves a minister or a buyer, and a disclosed document strengthens the case. Do the cheap, time-sensitive things first, because a missed comment window or a lapsed review deadline cannot be recovered. And sequence the legal moves with your counsel and the Nation so they land when they bite hardest — the submission built on the fullest science, the judicial-review application filed within its short window, the duty-to-consult challenge led by the Nation when its record is strongest — because a well-timed challenge can do more to stop a project than a stronger argument filed too late.

Later (Months 6-48+): Sustain, Win the Line, and Redefine the Win

Sustain the campaign against burnout; protect your people; keep the record and the coverage alive. Pursue the durable prizes — a **quashed approval**, a **redesign**, **binding conditions**, a **buyer or insurer walking away**, an **abandonment**. And judge success honestly. Sometimes it is an outright, permanent stop — a project abandoned, a rainforest protected, as at Clayoquot. More often, in a fight against a province-backed project, it is a project **delayed for years, shrunk, conditioned, stripped of buyers, or sent back by a court so many times that the proponent walks away**. That is not a lesser victory. It is what winning usually looks like, and it is worth every effort it takes.

The Shape of a Campaign

WEEKS 0-8	Identify Connect with the Nation Document Submit to the assessment Check consultation Get counsel
MONTHS 2-24	Grow the campaign Arguments Judicial review + duty to consult Market pressure Media
MONTHS 6-48+	Sustain Protect people Win the quashed approval / conditions / buyer withdrawal Redefine the win

FINAL ASSESSMENT

Canada gives communities a genuinely powerful — and, in places, distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. Where a project affects Indigenous rights, the **Crown's duty to consult and accommodate** — a constitutional obligation that has **quashed major approvals** — is among the most powerful community levers in any country, and it belongs to the Nation. A community can enter its evidence into **two levels of impact assessment**, and ask a court, through **judicial review**, to set aside an unlawful approval. It can follow Clayoquot's model and reach a company through its **customers, investors, and insurers**. It can draw on a **deep mobilization tradition** and, at the limit, on civil disobedience. And it stands on a **rising standard of Indigenous consent** that federal and provincial law now commit governments to implement.

The limits are just as real. The duty to consult is not a veto; jurisdictions tangle and federal assessment powers have been trimmed; provinces champion resource projects; blockades carry injunctions and criminal charges; and governments are fast-tracking development. No guide should pretend otherwise. The Trans Mountain pipeline was re-approved and built, and the war in the woods, its veterans say, never truly ended; that is the condition of this fight, not its exception.

So the realistic promise is this: **find and support the Indigenous-rights lever where it is engaged, document every defect and gap in consultation, use the assessment and the courts, reach the market, and mobilize the public — and run all of it together, protecting your people, getting early legal advice, and following the affected Nation's lead**. Do that, and even against a province-backed project you can force delay, conditions, exposure, lost buyers, a quashed approval, and a proponent worn down — and sometimes an outright stop. Do it as Clayoquot did, with people in the road, pressure on the market, and a movement standing with the Nations, and you can win a victory that protects not only your own watershed but sets a precedent others will stand on.

A last word on endurance. These fights are won in years, not weeks, and the proponent is counting on your exhaustion. Its advantage is money and patience; yours is legitimacy, the rights the Constitution protects, the market's sensitivity to reputation, and the fact that you are defending your home and your waters while it is merely pursuing a return. Play to that. Keep the file, keep the campaign, keep the record and the coverage alive, protect your people, and treat every delay, every quashed approval, every buyer that walks, every disclosed document, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here, and Canada's history proves they work: an ancient rainforest that a government opened to the saws still stands, because ordinary people stood in the road, followed the wood to its buyers, and stood with the Nations whose land it was. What decides the outcome is method, endurance, and courage — and those you supply. Begin today, begin cheaply, and build from there. Communities before you have stopped what looked unstoppable — a forest saved on a logging road, a pipeline approval quashed in court, a buyer that finally said no, a Nation whose rights turned out to matter more than a permit. The tools are proven and the doors are open; what has ever been missing in the fights that were lost was not the law but the organization and the endurance to use it. So can yours.